

Smt. Nannhi Devi v. State of U.P.

Allahabad High Court · Division Bench · 23 May 2022 · Writ-C No. 32126 of 2021 · Writ-C No. 32126 of 2021 · **Writ disposed; Para 6.8 objection with stay of coercive action.**

HEADNOTE

Without expressing any opinion on merits, a writ challenging a Section 126 assessment notice and a demand under Section 3 of the U.P. Government Electrical Undertaking (Dues Recovery) Act, 1958 was disposed by granting liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, directing a decision in accordance with law within the next four weeks after hearing, and staying coercive action for eight weeks or till disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Smt. Nannhi Devi challenged a provisional/final assessment notice dated 20 November 2020 under Section 126 of the Electricity Act, 2003 and a demand notice dated 4 December 2020 under Section 3 of the U.P. Government Electrical Undertaking (Dues Recovery) Act, 1958. She also sought a mandamus to decide her representation dated 7 May 2021. Counsel for the Power Distribution Corporation stated on instructions that she may file an objection against the demand, to be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to s.126 assessment as alternate remedy

HOLDING

Without expressing any opinion on the merits of a challenge to a Section 126 assessment notice and a demand under Section 3 of the U.P. Government Electrical Undertaking (Dues Recovery) Act, 1958, the writ court disposed of the petition by granting liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, directing the licensee to decide it in accordance with law within the next four weeks after a reasonable opportunity of hearing, and restraining coercive action for eight weeks or till disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

assessment-6.8-alternate-remedy A writ against a Section 126 assessment and a 1958 Act recovery demand was disposed without merits by relegating the consumer to a Para 6.8 objection, with a time-bound hearing and a short stay of coercive action. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE SECTION 126 ASSESSMENT NOTICES DATED 20.11.2020 AND THE RECOVERY DEMAND DATED 04.12.2020

Court expressly declined to express any opinion on the merits. ¶ 4